

		Thereafter, on October 31, 2024, the Court adjudicated Plaintiff's first cause of action for breach of contract, in his favor, against the Client Defendants. (ROA No. 224.) While Plaintiff filed a second Motion for Summary Adjudication against the Client Defendants on January 29, 2025 (ROA No. 279), the same was denied, given the claim was duplicative. (See ROA No. 316.) Subsequently, Plaintiff dismissed the second cause of action. (ROA No. 357.) After the above, all litigation in this action has proceeded solely against the Broker Defendants, with the sole exception of a Motion for Entry of Judgment filed on August 1, 2025 (ROA No. 373) and the instant Motion for Attorneys' Fees (ROA No. 462). In contrast to the authorities cited by Plaintiff, a clear line of demarcation exists, between the litigation pursued against the Client Defendants (for whom a contractual attorney's fee provision exists) and litigation against the Broker Defendants (for whom fees are not recoverable.) "A litigant may not increase his recovery of attorney's fees by joining a cause of action in which attorney's fees are not recoverable to one in which an award is proper." (<i>Erickson v. R.E.M. Concepts, Inc.</i> (2005) 126 Cal.App.4th 1073, 1083-1084.) Given the above, Plaintiff is ordered to resubmit his billing, with all entries relating solely to litigation against the Broker Defendants <i>removed</i>. Counsel for Plaintiff is also ordered to provide a summary of the work performed, similar to the summary offered within ¶25 of the Knierim Declaration, limited to the work performed against the Client Defendants. Plaintiff is ordered to file and serve the above, no later than 16 court days prior to the continued hearing date. Defendants may provide a <i>limited</i> response to the above, no later than 9 court days prior to the continued hearing date. Defendants' response shall be limited to identifying any charges Defendants believe were incurred solely in connection with litigation against the Broker Defendants. No other objections can be raised. Plaintiff to give notice.
56	Fiore vs. Wagon Wheel Canyon Community Association 24-01397793	Motion for Attorney Fees Defendant/Cross-Complainant/Cross-Defendant Wagan Wheel Canyon Community Association ("Association") motion for attorneys' fees is DENIED. If authorized by statute, attorney fees may be awarded to a prevailing party. (Code of Civ. Proc. §§ 1032, subd. (b), 1033.5, subds. (a)(10)(B) & (c)(5).) Code of Civil Procedure section 1032 is the general cost recovery statute for civil lawsuits. "Attorney fees are not normally recoverable costs." (<i>Riverside Mining Limited v. Quality Aggregates</i> (2024) 104 Cal.App.5th 269, 275.) However, recoverable costs may include attorneys' fees where authorized by contract, statute, or another law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606 [attorneys' fees are recoverable as costs "if, but only if" the party seeking such fees has "a legal basis, independent of the cost statutes and grounded in an agreement, statute, or other law, upon which to claim recovery of attorney fees"].) Civil Code section 5975, subdivision (c), contains a mandatory reciprocal fee shifting provision: "In an action to

		enforce the governing documents, the prevailing party shall be awarded reasonable attorney’s fees and costs.” Regardless of the title of the various causes of action or allegations, an award of attorney fees to the prevailing party is appropriate under section 5975, subdivision (c), when the gravamen of the entire complaint is to enforce the governing documents. (<i>Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 259-260.) Here, it is undisputed that Plaintiff’s action was brought to enforce the Association’s Master Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Wagon Wheel Canyon, a Planned Development (the “CC&Rs”). Plaintiff commenced this action on May 6, 2024 by filing a Complaint against the Association the Homeowner Defendants. (ROA 2, 15, 18.) On February 17, 2026, Plaintiff dismissed Homeowner Defendants Tina Alinaghian-Green and Terrence Alinaghian-Green (ROA 112) as well as the Association (ROA 113). On February 26, 2026, Plaintiff dismissed Homeowner Defendants Huang Jiehao and Liu Zhenming. (ROA 114.) Plaintiff also dismissed the entire action without prejudice. (ROA 115.) A Mandatory Settlement Conference (“MSC”) was held on April 30, 2026. (ROA 144.) Attorney Wankel, counsel for the Association, stated all active parties have settled the matter. (<i>Id.</i>) The basic terms of the settlement are: “Parties agree to dismiss their cross-complaints without prejudice. Terrence Alinaghian-Green and Tina Alinaghian-Green agree to pay Huang Jiehao and Liu Zhenming a total of \$15,000.00. As long as Huang Jiehao and Liu Zhenming own the subject property, they will trim the trees in question every 3 months, ongoing. Parties agree to waive all attorney fees and costs, as to the Cross-complaints.” (<i>Id.</i>) The Association argues it is the prevailing party because Plaintiff voluntarily dismissed all claims against the Association without prejudice. There was no settlement reached between Plaintiff and the Association, no judgment was entered, and no injunction was issued. The Association did not pay any money to Plaintiff, did not admit any wrongdoing, and did not undertake any obligations. Plaintiff contends that he obtained substantial relief when the Association’s enforcement action against the Homeowner Defendants resulted in the trees at issue to be cut within one foot from the ground. (ROA 145 at 6:25-26.) Plaintiff asserts that Homeowner Defendants Huang Jiehao and Liu Zhenming’s agreement to quarterly trimming was substantial relief because there had been no previous interval trimming and trimming had not been enforced. (<i>Id.</i> at 8:6-8.) Additionally, a non-party neighbor removed some of the trees at issue. (<i>Id.</i> at 9:1-6.) Citing <i>Heather Farms</i>, the Association contends that prevailing party determinations are evaluated by examining which party achieved its litigation objectives as between the parties and the claims at issue. <i>Heather Farms</i>, however, does not place this limitation on the Court’s analysis, and California law indicates otherwise. Because the Davis-Stirling Common Interest Development Act does not define prevailing party, courts take a pragmatic approach to determine which party prevailed by considering the extent to which each party realized its litigation objectives. (<i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 1264.) “[I]n determining litigation success, courts should respect substance rather than
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		form, and to this extent should be guided by ‘equitable considerations.’ ” (<i>Hsu v. Abbata</i> (1995) 9 Cal.4th 863, 877 [italics omitted].) In <i>Silver v. Boatwright Home Inspection, Inc.</i> (2002) 97 Cal.App.4th 443, the Court of Appeal reiterated the principle that trial courts have discretion to base attorney fee awards on a pragmatic evaluation of the extent to which each party realized its litigation objectives. (<i>Id.</i> at p. 451; see also <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 622.) In <i>Silver</i>, the plaintiffs bought a home pursuant to a purchase agreement containing a fee provision. (<i>Silver, supra</i>, 97 Cal.App.4th at pp. 445–447.) The plaintiffs sued the sellers, an inspection firm, and other parties for breach of contract, negligence, fraud, and breach of fiduciary duty, asserting that they had suffered approximately \$70,000 in damages. (<i>Id.</i> at pp. 446–448, 118 Cal.Rptr.2d 475.) After the plaintiffs settled their claims against all the defendants except the inspection firm, they voluntarily dismissed the inspection firm. (<i>Id.</i> at pp. 447–448.) The inspection firm requested a contract-based fee award as the prevailing party, which the trial court denied. (<i>Id.</i> at p. 448.) The Court of Appeal affirmed, concluding that despite the judgment in the inspection firm’s favor, it had not prevailed, as the plaintiffs’ settlements secured most of the relief that they sought. (<i>Id.</i> at pp. 452–453.) Here, Plaintiff and the Association obtained their litigation objectives. In bringing this action, Plaintiff sought, <i>inter alia</i>, Defendants’ compliance with the governing documents, an order: (1) mandating that Defendants cut or remove the offending trees; (2) enjoining the Homeowner Defendants from allowing the offending trees to grow past the fence height; and (3) requiring the Association to mandate compliance by the Homeowner Defendants. (ROA 2 [Complaint].) Plaintiff has obtained this relief. (ROA 145; see also ROA 144.) Plaintiff also received \$10,000.00 from the Alinaghian-Green Homeowner Defendants. (ROA 145.) For its part, the Association settled with the Homeowner Defendants and was voluntarily dismissed by Plaintiff. (See ROA 113 and ROA 144.) Moreover, a conclusion that Plaintiff and the Association realized their litigation objectives encourages the public policy of settlement of cases. It is well-established that settlements are “highly favored as productive of peace and good will in the community, and reducing the expense and persistency of litigation.” (<i>McClure v. McClure</i> (1893) 100 Cal. 339, 343.) An award of attorney fees under the circumstances could increase the likelihood of litigation solely to establish a prevailing party. Moving party to give notice.
58	Joslin vs. Fidelity National Law Group 24-01440293	Demurrer to Amended Complaint & Motion to Strike Portions of Complaint Defendants, Commonwealth Land Title Insurance Company (erroneously named and served as Fidelity National Law Group) (“CLTIC”) and Brian Edwards (“Edwards”) (collectively, “Defendants”)’s demurrer to Plaintiff Jeff A. Joslin’s (“Plaintiff”) First Amended Complaint (“FAC”) is OVERRULED. Defendants’ motion to strike is GRANTED WITH LEAVE TO AMEND as to the punitive damages allegations and request for punitive damages, and DENIED in all other respects. Defendants’ request for judicial notice of the documents filed in <i>Third Laguna Hills Mutual v. Michael Cohen, et al.</i> (OC Case No. 30-2017-00957937-CU-CO-